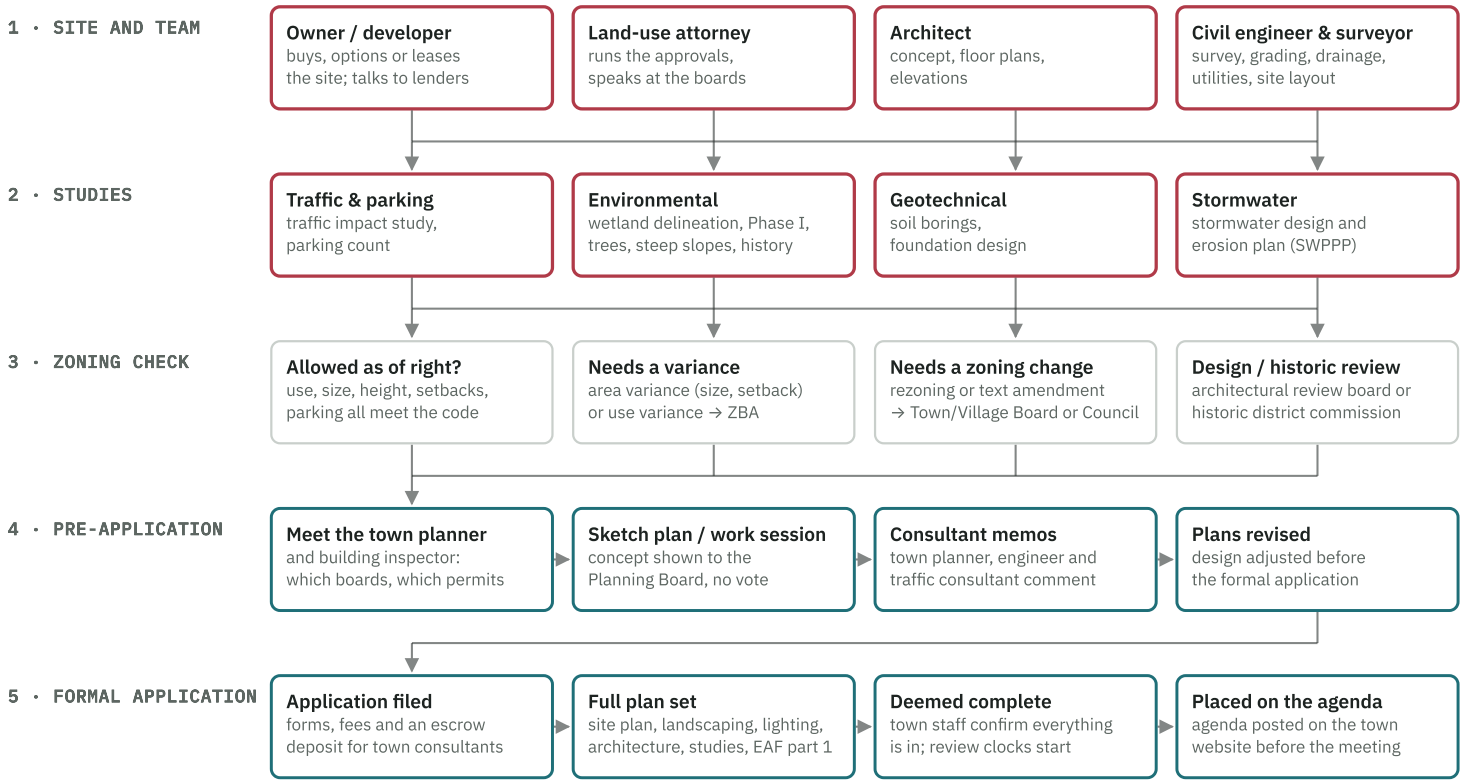
How a construction project gets approved and built

Step by step for a private project in Westchester County (pages 1–4) and New York City (pages 5–8), plus the rules that change who gets hired (page 9), from controlling the site to the certificate of occupancy. Small jobs skip most of the land-use steps; boards, fees and local rules differ by municipality.

Government step or rule · Steps in order, left to right · Other agency or extra step, only when it applies · Someone gets hired here

Westchester · 1 of 4: before the application

Each of Westchester's 45 cities, towns and villages runs its own boards under New York State law (Town Law, Village Law, General City Law). The county reviews but does not approve.



The owner assembles the team and studies, checks zoning, meets the town informally, then files a complete application.

AS OF RIGHT

If use, size, height, setbacks and parking meet the code, the project usually needs only Planning Board site plan approval.

ESCROW

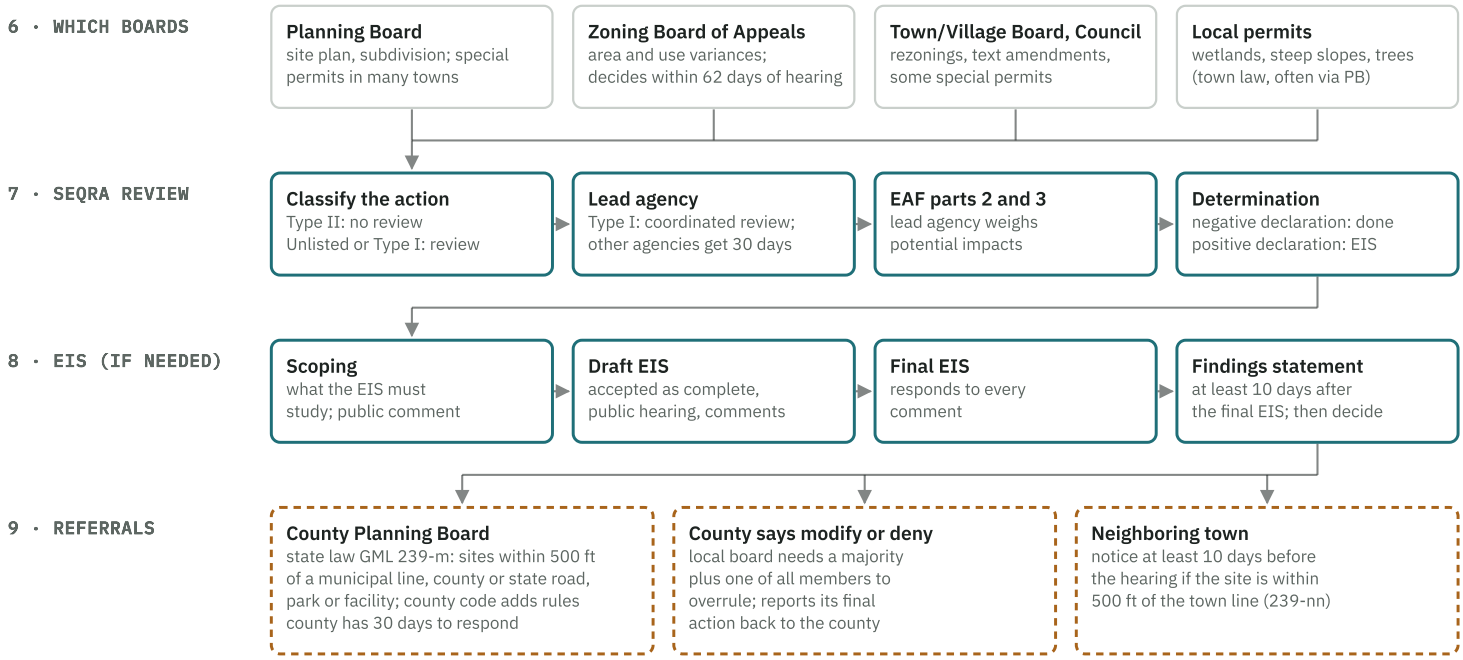
Most towns make the applicant fund the town's own planner, engineer and traffic consultant through an escrow account.

AGENDAS

Every application appears on a public agenda before each meeting, naming the project, address and usually the applicant.

Westchester · 2 of 4: boards, environmental review and referrals

The boards review in parallel with the State Environmental Quality Review Act (SEQRA) and the county referral.



Which boards apply, the SEQRA steps (with the full EIS only after a positive declaration), and the county and neighbor referrals.

SEQRA

No board may approve until SEQRA is finished: either a negative declaration or a findings statement after an EIS.

COUNTY REFERRAL

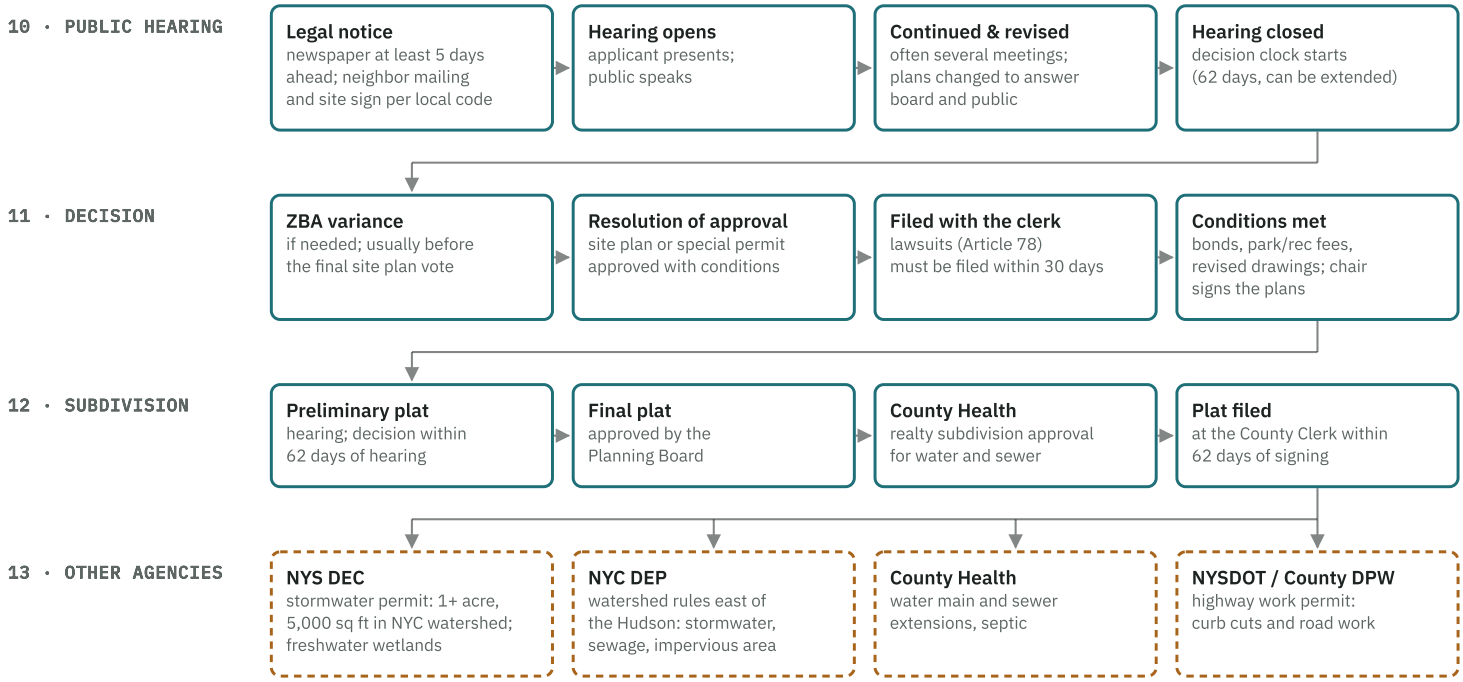
The County Planning Board reviews and comments; it cannot approve or deny, but a 'modify' or 'disapprove' raises the local vote needed.

TIMING

A clean site plan can finish in a few months; variances, rezonings or an EIS commonly take a year or more.

Westchester · 3 of 4: hearing to approval

Public hearings, the board's written decision, subdivision steps if lots are created, and permits from state and regional agencies.



The hearing runs until the board is satisfied, the decision is filed, conditions are met and the chair signs the plans.

DEADLINES

Town Law sets 62 days from the close of the hearing to decide a site plan, variance or plat; the applicant can agree to extend it.

CHALLENGES

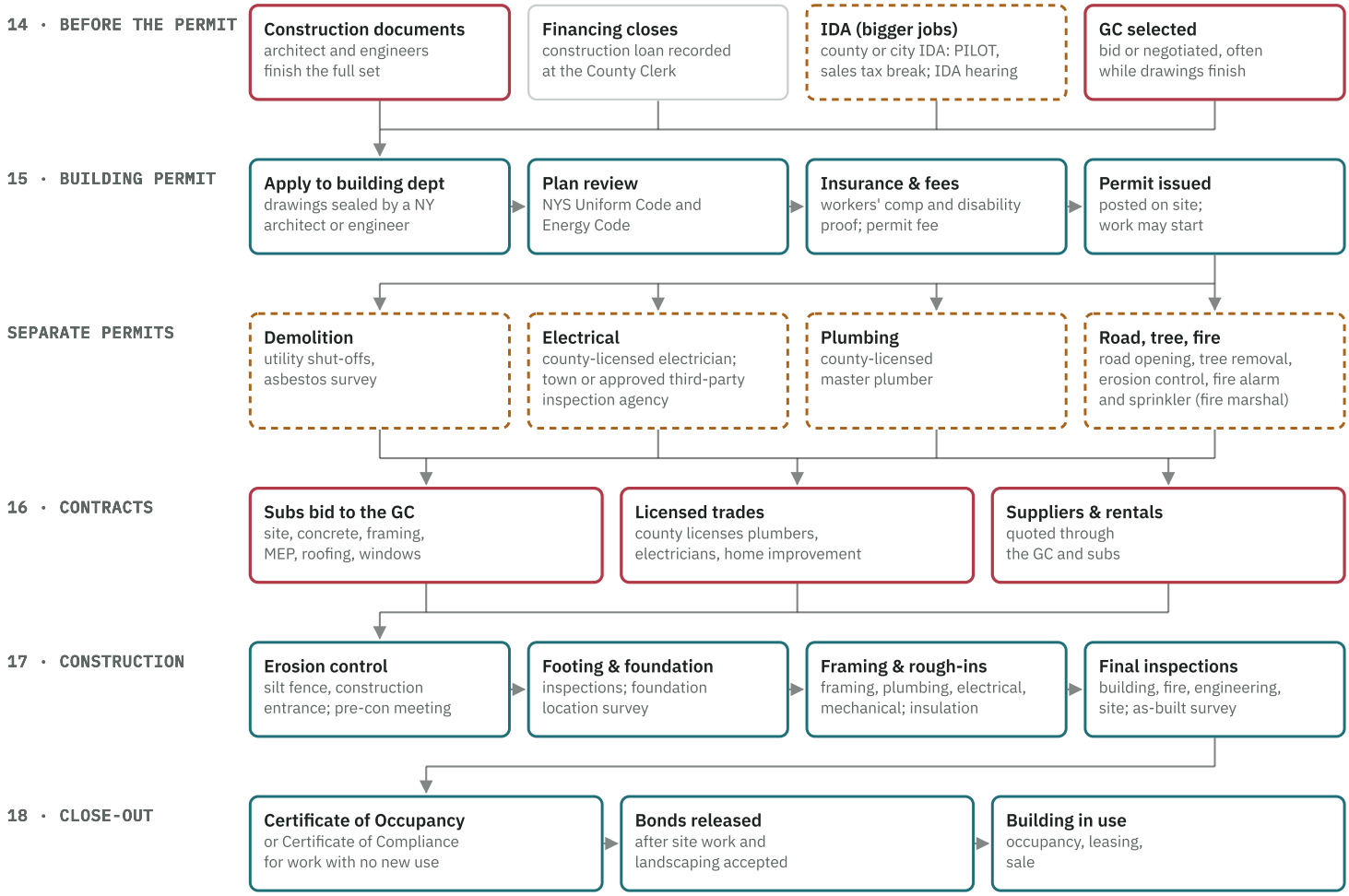
Neighbors have 30 days after the decision is filed with the clerk to sue (Article 78).

WATERSHED

Northern Westchester sits in the NYC water supply watershed, where stormwater rules start at 5,000 sq ft of disturbance.

Westchester · 4 of 4: building permit to occupancy

After land-use approval the job moves to the municipality's building department (building inspector), which permits and inspects the work.



Construction drawings, financing and the GC come together; the building permit and trade permits are issued; inspections run until the certificate of occupancy.

TWO APPROVALS

Boards approve the land use; the building department approves the construction drawings. Both are needed before work starts.

LICENSES

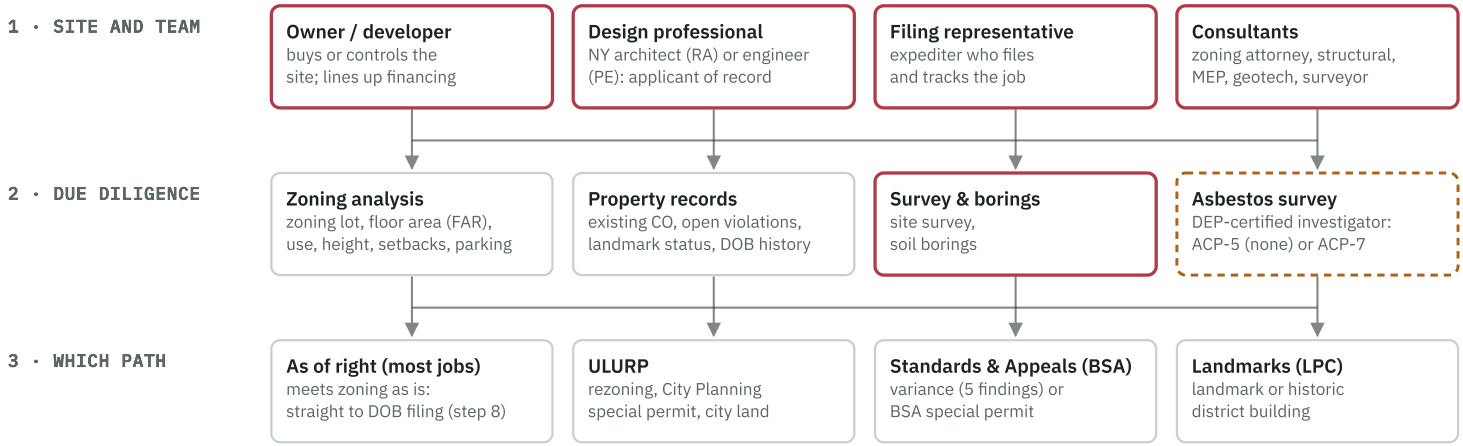
Westchester County licenses home improvement contractors, plumbers and electricians; proof of workers' comp and disability insurance is required for a permit.

WHO HIRES WHEN

Attorney and designers first; the GC usually while construction drawings are finished; subs and suppliers after the GC.

New York City · 1 of 4: before filing

One city government for all five boroughs. The Zoning Resolution decides whether a project can go straight to the Department of Buildings (DOB).



The owner assembles the team, checks zoning and the property's records, and picks the approval path.

AS OF RIGHT

Most projects need no public review: the design professional files with DOB and the job goes to plan exam.

APPLICANT OF RECORD

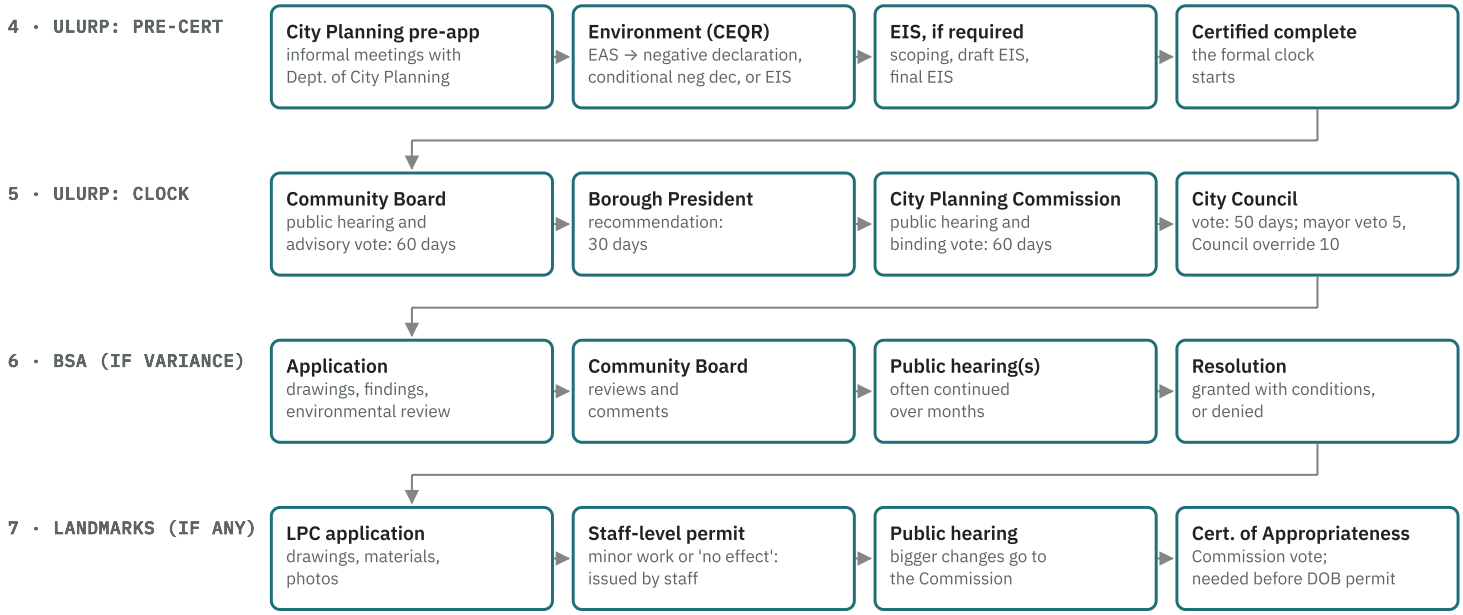
A New York licensed architect or engineer files and is responsible for the plans; a filing representative often handles the paperwork.

ASBESTOS

An asbestos survey (ACP-5, or ACP-7 if asbestos must be removed) is needed before DOB issues alteration or demolition permits.

New York City · 2 of 4: discretionary approvals

Only projects that do not meet zoning as of right, or that touch landmarks, go through these steps before DOB can approve them.



ULURP for rezonings and City Planning special permits, the Board of Standards and Appeals for variances, and Landmarks for landmark buildings.

ULURP CLOCK

After certification the formal clock is about seven months; the pre-certification work with City Planning often takes a year or more.

TEXT AMENDMENTS

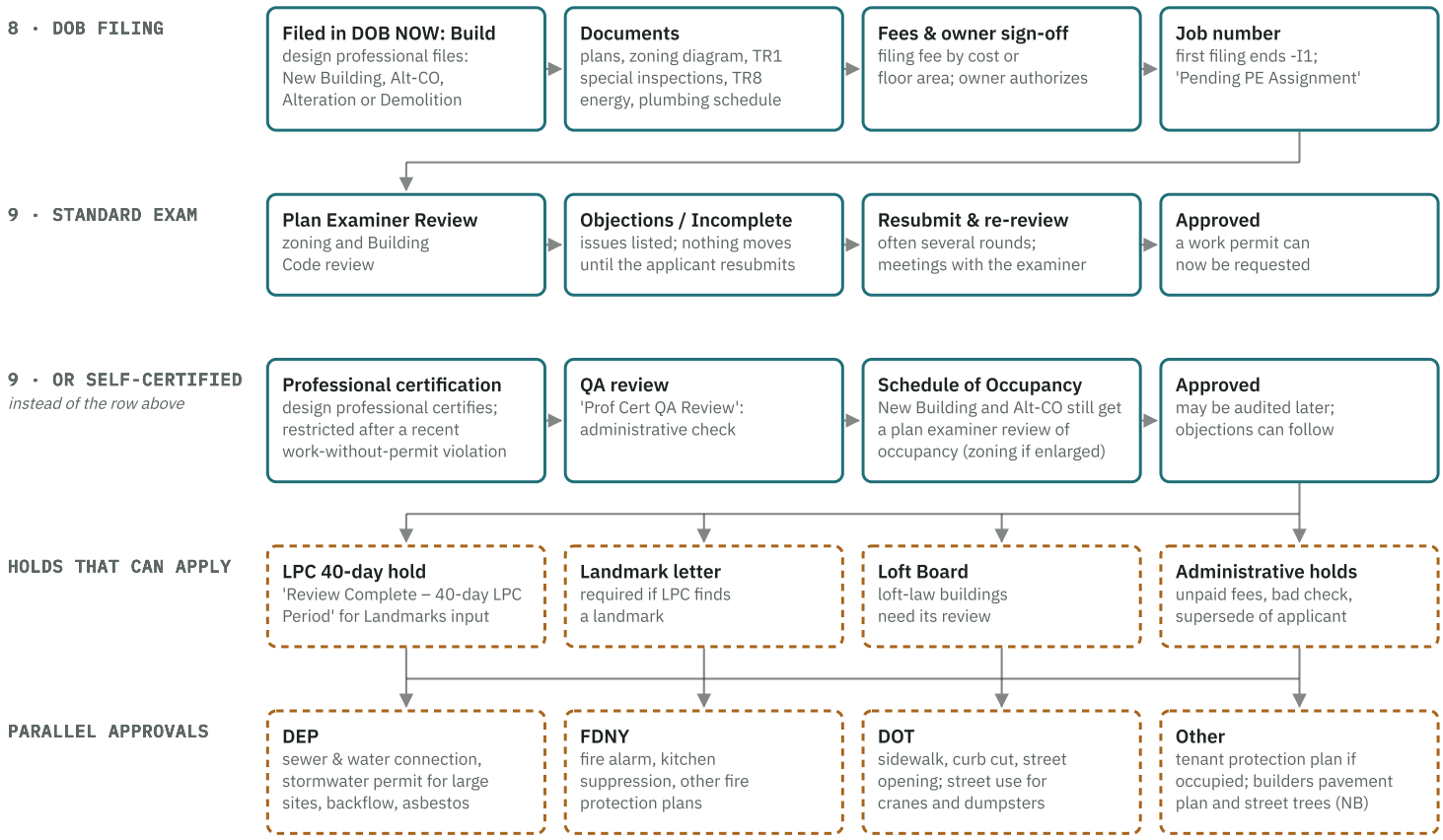
Zoning text changes follow a similar public review outside ULURP (City Charter section 200).

LANDMARKS

DOB will not issue permits on a landmark or historic district building without LPC sign-off.

New York City · 3 of 4: DOB filing and plan exam

The design professional files in DOB NOW: Build. The status names below are DOB's own.



Filing, then either standard plan exam or professional certification, any holds, and approvals from other city agencies that run alongside.

JOB TYPES

New Building, Alteration-CO (major change needing a new certificate of occupancy), Alteration, and Full Demolition.

OBJECTIONS

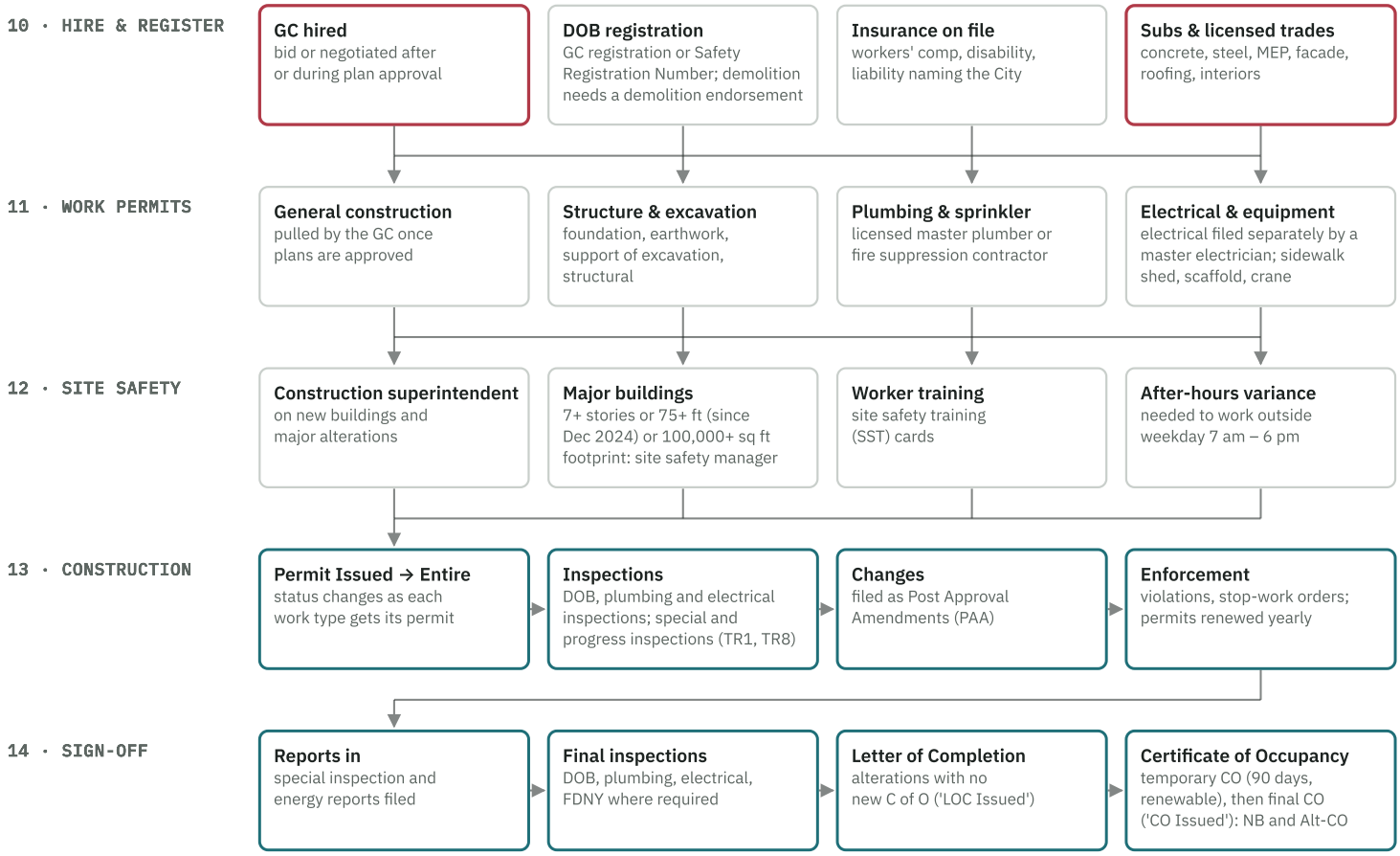
Most filings get objections at least once; the job waits with the applicant until it is resubmitted.

APPROVED IS NOT A PERMIT

'Approved' means the plans passed; no work starts until a work permit is issued.

New York City · 4 of 4: work permits to sign-off

Approved plans become work permits pulled by a registered GC and licensed trades; DOB and inspection agencies check the work until sign-off.



Hiring and registration, a permit per work type, site safety rules, construction with inspections, then the letter of completion or certificate of occupancy.

REGISTRATION

New buildings and major alterations need a GC registration or Safety Registration Number; demolition needs a demolition endorsement.

PERMIT STATUS

'Permit Issued' means at least one work type is permitted; 'Permit Entire' means all of them are.

SIGN-OFF

Alterations end with a Letter of Completion; New Building and Alt-CO jobs end with a final certificate of occupancy.

Rules that change who gets hired

Six rules that change who can bid, what each trade's share of the work is, or how early a job shows up. Some are still changing; check the current status before relying on a date or threshold.

RULE	WESTCHESTER	NEW YORK CITY	WHAT IT CHANGES FOR CONTRACTORS
Prevailing wage	State Labor Law 224-a: private projects over a cost threshold that get 30%+ of their cost from public money, which can include some IDA tax deals, must pay prevailing wage.	Same state law. Common on subsidized housing and city-assisted projects.	Only contractors who pay prevailing wage and keep certified payroll can work these jobs. It splits the bidder list.
Affordable housing	Many towns require a share of new apartments to be affordable; county and IDA help often comes with the deal.	Mandatory Inclusionary Housing in rezoned areas; the 485-x tax break; HPD-financed projects with public closings.	Subsidized jobs move on public funding dates and often carry hiring or M/WBE goals. Contractors who know the program rules win them.
All-electric buildings	New York State all-electric law for new buildings; its start date has been tied up in court, so check the current status.	Local Law 154: no gas in new buildings under 7 stories filed since 2024; taller buildings from mid-2027.	More heat pumps and electrical service; less gas piping. Changes which trades gain on new buildings.
Demolition comes first	Asbestos survey under state Rule 56 for buildings built before 1974, then a town demolition permit.	Asbestos survey (ACP-5 or ACP-7), Con Ed and DEP disconnect letters, and rodent baiting before DOB issues a demolition permit.	A demolition or abatement filing often signals a new building months ahead, and is work in its own right.
Expired or amended approvals	Site plan approvals and permits expire unless extended; changes need an amended site plan.	Work permits lapse with insurance or after a year; changes are filed as Post Approval Amendments.	An extension or amendment means a stalled job is moving again. A lapsed approval can mean the site is for sale.
Zoning changes	Towns rezone downtowns and train-station areas for more housing; these show up as text and map amendments.	City of Yes for Housing Opportunity (December 2024) cut parking requirements and allowed more small and mid-size housing.	More small and mid-size residential jobs, the size local GCs and subs build.